Minutes of the Meeting and Public Budget Hearing held On December 6, 2006

Pine Valley Special Service District Meeting (PVSSD)

Attending Members: Mary Esther Putnam (Chairwoman); Gerald Schiefer (VC); Dall Winn

Absent Member: Ron Snow

Also Present: Steve Robinson (Fire Chief), George Cropper (Treasurer) and Beverly Udell (Secretary)

Guests: Gae Robinson; Guin Winn; Fred Pendleton; John Nichols; Scott Vance

1. General Business: Time was changed for this meeting only to be 6:30 P.M.
a/b. Welcome – The meeting was called to order at 6:30 P.M. with the opening being the Pledge of Allegiance led by Gerald.

c. Review/Approval of the 'Minutes of the Meeting' from March 29, 2006 and July 5, 2006 and August 2, 2006. Minutes from March 29 and July 5 had already been given to the Board Members at previous meetings for review. The minutes from August 2 were given out tonight. Some of the Board members hadn't gotten a chance to review the other Minutes yet, so for the sake of saving time during this meeting, Mary Esther said that she would get with the other Board members via phone after Christmas and go over the Minutes. They should be ready then for approval during the January 3, 2007 meeting. Beverly brought up the need for a recording device to record the meetings (it's the law.) Mary Esther asked Fred Pendleton to check into recording devices that might work for us.

d. Budget – George shared the proposed budget for 2007. Utah requires the budget to be approved and sent in to them in January. George passed out copies of his proposed budget report (see copy). George talked a few minutes about pg. 2 of his report and the Impact Fees. The Impact Fees will go to an interest bearing account. In 2007, they don't plan to spend any of the Impact Fees monies that have been brought in. PVSSD has six years to spend the money. At the end of the 4th year, Steve will submit proposals to enlarge and/or modify the fire station to be done in 2009 or 2010. The Impact Fee money can also be used for truck equipment but not truck maintenance. The State says that Impact Fees need to be reflected in the General Budget and not in a separate budget, so pg. 2 of the report is for our use only, just so the Board can have an idea of what that money is doing. George then took some time to explain the details of the budget. His projection might be low because when he did the report, he didn't take into consideration that the late fees we will have coming in will be based off of our new fee structure and not the same as what came in at the beginning of 2006. Contract salaries (Chief, Treasurer and Secretary) will remain the same. Proposed increase from 2006 to 2007 is in the Operating Expenses. Plus George suggests increasing the operating expenses

that are now written at $41,000 to be a figure of $51,000. He said that he was advised that it is better to have a higher budget and allow for a little cushion for unexpected emergencies that hopefully won't happen, than to have a strict to the penny budget and end up having to go over budget when the unexpected occurs. Mary Esther again brought up how we need to be so careful about how the extra money coming in is spent so we don't spend it on frivolous things just because we have the money. Beverly gave kudos to the Board saying that in her opinion this Board does above and beyond on being carefully and if anything they border on the extreme of being too diligent. Beverly said that there isn't anyone who could question how careful and conscientious this Board is in that regard.
* Steve brought up the need for some extra fire hydrants on the West side of town. They are dangerously short of hydrants in that area. Hydrants cost around $2200-2250 a piece. Steve is suggesting adding at least 2 hydrants a year over on that side. Gerald asked if a new property builder on the West side put in a new hydrant. Steve said that he hadn't been required to. Steve mentioned a second new person that the County also didn't require them to put in a hydrant as part of their building permit. House Bill 146 states that we can't plan on using ponds for water fire protection because they don't meet code. George mentioned that he thought Ray Hunt was supposed to put in a hydrant. Dall felt we should go ahead and increase the proposed budget by $10,000, as George suggested, especially to help account for the placement of new hydrants. One problem we face is that we have to make the hydrant request from the Pine Valley Irrigation Co., who then contracts out for the hydrant placement, but we pay for it. We are at the mercy of whoever they contract with for the cost. We have sometimes gotten stuck in the past with a large bill. Maybe in the future we can stipulate an amount to them. Dall motioned to increase the proposed budget by $10,000, from $41,000 to $51,000 under the Operating Expenses. Gerald seconded that motion and all were in favor. Income and loss column will then reflect that by going from $17,000 down to $7,000. The "formal hearing" notice goes in The Spectrum before January 3rd's meeting to vote on approval of this budget.
* John Nichols asked why those on the West side don't have to pay for their own hydrants. Mary Esther explained that in those areas that were plotted years and years ago, we didn't even yet have a fire department, so no hydrants were required. Newer areas are now required to place hydrants. Mary Esther asked if we are allowed to use Impact Fee money for hydrants. Steve will check with Dave Patterson for that answer. Hydrants are considered a Capital Improvement. George asked who actually owns the hydrants. It is believed that the P.V. Irrigation Co. owns them and therefore is responsible for the maintenance too.

Pine Valley Building Permits Reviewed: None

e. Board Member Reports:
Gerald: He thanked the Feds for the great job they did on the prescribed burns in Pine Valley over the last month. They in turn said how very much they appreciated our help. Three days of burning has been accomplished. Soon the whole valley will be surrounded by fire breaks.
* The County Fire Warden will be leaving that position. That is the 3rd warden this year.
* It is against the law for people to live in trailers in Pine Valley. Trailers don't meet County Code. One trailer in Aspen Meadows has become permanent enough that they even have a porch and fence. Dave Patterson said that if we get him addresses, they can send letters to the property owners.

* ATV – John Willie suggested that we send a letter saying that since there isn't a County Ordinance overriding the Utah state law, that we request that the Commissioners allow us to enforce Utah law. The ATV signs in the valley would also need to come down.
* Gun discharges – guys have been coming into Pine Valley to shoot coyotes. Guns are NOT supposed to be discharged in the valley. We need to worry about this in our community for obvious safety.
* Dall has been overseeing the bills. He has been doing a great job!
* Winter fire school in St. George in January (19th and 20th). If we pay in December for our members to go, we only pay $80. If we wait to pay until January, the price increases to $120.
Dall – He has been looking into getting a plaque to hang in the fire station that will list all of the firefighters in Pine Valley for as far back as can be remembered. Nice idea.
Fire Chief's Report- Steve: No Fire callouts this month – one EMS call. We are still requiring burn permits for any open burning at least through May 07.
* We did not receive a FEMA grant this year for the extrication and SCBA equipment we put in for.
* Steve plans to start ordering backpacks out of his allotted monthly $500. He will also be ordering more foam out of that same allowance. We will apply for FEMA again next year.
* Steve took some time to explain a problem that has occurred with the supplier of the fire truck – Fireman's Supply Inc. (Steve handed a copy of a letter to Mary Esther.) The supplier has failed to pay two of the people that they recommended that we go to for supplies for the new truck (supplies that should have been in the original truck price.) Since we are under the domain of the County, we have access to the use of the County Attorney. Steve has notified Dave Patterson of the problem and Dave advised Steve to write the letter. Mary Esther will approve the letter, send a copy to Dave along with copies of the invoices, plus send it off to Fireman's Supply Inc.
* We have two new volunteers firefighters. The good news is that they are both younger than Beverly!
* Steve gave Dall copies of all his invoices since he has been Fire Chief.
* Steve no longer wants to use fire trucks to go to fire chiefs meetings because they are high on gas, plus wear/tear and it is better to always have the fire trucks here in Pine Valley, so Steve will be turning in his receipts for the gas used in his personal vehicle to go to those meetings. Mary Esther suggested maybe looking at giving him so much per mile towards his gas. Dall asked if we pay for Steve's gas for fire meetings. Gerald's opinion was that we should pay for gas while Steve is on official business. It was decided to pay him at .36 cents a mile.
* Jeff Hunt is no longer working for Enterprise. He was their Fire Chief, lead EMS, ambulance driver, etc. That could place a bigger burden on the Pine Valley EMS to pick up some of that slack on EMS call-outs.
Beverly shared how the training went that she attended in Provo. She passed out to each Board member a copy of "The Little Manual for Special Districts".
* Discussion was also brought up about the annual fee letter and when it should be sent out to the property owners. Beverly felt that it should be sent out in June because the "due by" date isn't until July 31st. Her feeling were that we get a better and quicker response than when we send the letter out in February and people then have 7 months to return their payment. Too many people procrastinate and forget. The Board still felt they want the letters to go out earlier in the year (around February or March) so the money starts coming in earlier. It was decided

that this year the letter will go out in Feb./March and along with the letter will be a note explaining that next year the annual fee will be due back earlier, say maybe April or May. It was also discussed that none of the people who turn their payments back into us late ever pay the late fee. We will warn them again in the letter that we send that there is indeed a late fee and this time if they don't pay the fee we will send that information along to the Country Treasurer's office when we send in our report, and people will have a lean placed against their house by the County until they pay the late fee.

2 - Public Comments – None

At 8:30 P.M.- Dall motioned to adjourn, Gerald seconded.

The next Board meeting will be held on Wednesday, January 3, 2007 at 6:00 P.M.